

## **Building (Demolition Works) Regulations**

### **(Cap. 123 sub. leg. C)**

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## **Building (Demolition Works) Regulations**

(Cap. 123, section 38)

[1 October 1962]

*(Format changes—E.R. 2 of 2021)*

### **1. Citation**

These regulations may be cited as the Building (Demolition Works) Regulations.

### **2. Application**

These regulations apply to the demolition of a building or of any substantial or significant part of a building.

*(L.N. 358 of 1980)*

### **3. Duties of authorized person and registered specialist contractor prior to commencement of demolition**

(1) Before the demolition is commenced, the authorized person appointed in respect of the demolition works shall— *(L.N. 190 of 1974)*

- (a) cause all gas, electricity, water and other meters to be removed from the building and, save in so far as the same may be used in the demolition works, cause the supply of gas and electricity to the building to be disconnected; and
- (b) cause any fitting attached to the building in connexion with any tramway service, system of street lighting, supply of electricity or other service to be removed.

- (2) Before commencing the demolition, the registered specialist contractor appointed in respect of the demolition works shall— (*L.N. 515 of 1997*)
- (a) where a wall of the building abuts or fronts upon a street, service lane or other open area accessible to the public—
    - (i) erect along that wall, at the level of the first floor of the building above the level of the street, fans or catch platforms;
    - (ii) erect fans or catch platforms at the level of such other floors of the building as may be necessary to prevent any nuisance from dust or danger from debris or materials but so that such fans or catch platforms are sited at vertical intervals of not more than 10 m with the uppermost fan or catch platform not more than 10 m below the working level; and
    - (iii) erect dust screens to cover the whole of the wall so as to prevent any nuisance from dust; (*L.N. 358 of 1980*)
  - (b) seal all sewer and drainage connexions; and
  - (c) remove all glazed sashes and doors from the building.

#### **4. Provisions as to shoring, etc.**

- (1) Save as provided in paragraph (2), before commencing the demolition and at such times during the carrying out of the demolition works as may be necessary, such precautions as may be necessary shall be taken, by the provision of adequate shoring or otherwise, to prevent, so far as is practicable, the accidental collapse of any part of the building, or of any adjoining or other building, the collapse of which may endanger any person. (*L.N. 112 of 1964*)

- (2) Paragraph (1) shall not apply in relation to a person actually engaged in placing shoring or other safeguards for the purpose of compliance with paragraph (1), if such precautions as are practicable are taken to ensure the safety of that person.

**4A. Sequence of carrying out demolition works**

A registered specialist contractor appointed in respect of demolition works is required to ensure that the demolition works are carried out—

- (a) in the reverse order of construction of the building to be demolished unless it is not appropriate; and (*L.N. 609 of 1997*)
- (b) so that any collapse or fall of a part of the building is designed for in the plans for demolition works and controlled so as not to endanger any person.

*(L.N. 515 of 1997)*

**5. Electric cables, etc. not to be remain charged**

No electric cable or other apparatus, other than such a cable or apparatus used in the demolition works, that is liable to be a source of danger, shall, at any time during the carrying out of such works, remain electrically charged.

**6. Precautions to be taken to prevent danger from fire or explosion, etc.**

At all times during the carrying out of any demolition works—

- (a) the registered specialist contractor appointed in respect thereof shall take all practicable steps to prevent danger to persons employed therein— (*L.N. 515 of 1997*)
  - (i) from risk of fire or explosion through the leakage or accumulation of gas or vapour; and

- (ii) from risk of flooding from water mains, sewers or culverts; and
- (b) all external openings to or from the building shall be so protected as to prevent danger to persons employed in the demolition works.

**7. Provisions in relation to shutes for removal of materials, etc.**

Where shutes are provided for the removal of materials or debris, they shall be so situated and constructed as to avoid, so far as practicable, any danger to persons employed in the demolition works or to any other person.

**8. Demolition works to be carried out under supervision of technically competent person**

- (1) The demolition and all works incidental thereto shall be specifically placed under the personal supervision of a technically competent person appointed by the registered specialist contractor appointed in respect of demolition works.
- (2) Where 2 or more registered specialist contractors take part in the demolition works, each such contractor is required—
  - (a) to appoint such number of technically competent persons as appropriate to supervise personally the demolition works; and
  - (b) to ensure that his workmen do not carry out an operation in the course of the demolition works until after he has consulted and agreed with the other contractors as to the method by which and the time at which the operation is to be carried out.
- (3) A notice in the specified form specifying the name of the technically competent person or persons appointed in accordance with paragraph (1) shall be posted up in a

prominent position on the site of the demolition works.  
(*L.N. 348 of 1993*)

(*L.N. 515 of 1997*)

**9. Certain operations to be carried out only under competent supervision**

- (1) The operations specified in paragraph (2) shall be carried out only—
  - (a) under the immediate supervision of a technically competent person appointed by the registered specialist contractor appointed in respect of demolition works; or  
(*L.N. 515 of 1997*)
  - (b) by workmen experienced in demolition works and under the supervision of a technically competent person appointed by the registered specialist contractor appointed in respect of demolition works. (*L.N. 515 of 1997*)
- (2) The following operations are specified for the purposes of paragraph (1)—
  - (a) the actual demolition of the framework of a building or of any floor, wall, roof or staircase, save where there is no risk of a collapse of any part of a building in the course of, or as a result of, the demolition works, so as to endanger any person employed in the demolition works, other than a risk which could not reasonably have been foreseen;
  - (b) the actual demolition of any part of a building where there is a special risk of collapse, whether of that part of the building or of any part of a building, in the course of, or as a result of, the demolition works, so as to endanger any person employed in the demolition works;

- (c) the cutting or breaking up or dismantling of reinforced concrete, steelwork or ironwork forming part of the structure of a building;
- (d) the use of any powered mechanical plant or equipment in actual demolition work. (*L.N. 358 of 1980*)
- (3) The operator of powered mechanical plant or equipment used in demolition work shall—
  - (a) have at least 3 years experience in operating the particular plant or equipment;
  - (b) possess such other training, knowledge, skills and experience in the operation of the particular plant or equipment as the Building Authority may specify from time to time; and (*L.N. 609 of 1997*)
  - (c) operate under the immediate supervision of a technically competent person appointed by the registered specialist contractor appointed in respect of demolition works. (*L.N. 515 of 1997*)

**10. Floors, etc. not to be overloaded**

- (1) No floor, roof or other part of a building that is being demolished shall be so overloaded with debris or materials as to render it unsafe or liable to become unsafe. (*L.N. 358 of 1980*)
- (2) No debris or materials from demolition shall be permitted to accumulate against any fence, hoarding or wall so as to render it unsafe or liable to become unsafe. (*L.N. 358 of 1980*)
- (3) No floor, roof or other part of a building that is being demolished shall be so overloaded with any plant or equipment as to render it unsafe or liable to become unsafe. (*L.N. 515 of 1997*)

**11. Precautions to be taken in relation to cutting of steelwork, etc.**



Where, during the carrying out of any demolition works, steelwork or ironwork is being cut or released or dismantled, precautions shall be taken, so far as is practicable, to prevent any danger from a sudden twist, spring or collapse.

## **12. Precautions to be taken in removing framing**

Where, during the carrying out of any demolition works, any part of the framing is being removed from a framed or partially framed building, all practicable precautions shall be taken to prevent danger from collapse of the structure.

## **13. Offences and penalties**

- (1) An authorized person who contravenes regulation 3(1) shall be guilty of an offence and shall be liable on summary conviction to a fine at level 4. (*L.N. 190 of 1974*)
- (2) A registered specialist contractor who contravenes regulation 3(2) shall be guilty of an offence and shall be liable on summary conviction to a fine at level 4.
- (3) A registered specialist contractor who contravenes regulation 6(a) or regulation 8(2) shall be guilty of an offence and shall be liable on summary conviction to a fine at level 6 and to imprisonment for 2 years.
- (4) In the event of a contravention of regulation 4(1), 4A, 5, 6(b), 7, 8(1) or (3), 9(1) or (3), 10, 11 or 12, the registered specialist contractor appointed in respect of, and any person directly concerned with, the demolition works shall be guilty of an offence and shall be liable on summary conviction to a fine at level 6 and to imprisonment for 2 years. (*L.N. 358 of 1980*)

(*L.N. 170 of 1979; L.N. 515 of 1997; E.R. 2 of 2021*)